

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 24-09

Served: March 12, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

MEMORANDUM ORDER

On March 6, 2025, the parties filed a Joint Motion to Extend Discovery and Briefing Deadlines, Dkt. 32. The parties represent that they have exchanged supplemental initial disclosures, supplemental written discovery requests, and expert reports in accordance with the First Amended Scheduling Order. Joint Mot. 2. They requested a six-week extension to the discovery and briefing schedule to accommodate additional discovery and Respondent's anticipated motion for partial summary judgment. Joint Mot. 4. On March 11, 2025, Respondent filed its motion for partial summary judgment, Dkt. 34. Respondent argues that certain shipments described in the complaint are outside the subject matter jurisdiction of the Federal Maritime Commission because they did not move by water between a port in the United States and a port in a foreign country, as required by 46 U.S.C. § 40102(7), but rather were discharged at a Canadian port and then transported by truck or rail to their final destination in the United States, pursuant to a through bill of lading. Mot. for Partial Summ. J. 1-2.

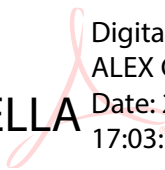
I scheduled a status conference to determine whether there was any outstanding discovery necessary for the purpose of responding to the motion for summary judgment, the anticipated timing for completing written discovery, whether there were any discovery disputes involving issues other than the Canadian shipments, and whether witnesses were available for depositions in the timeframe described in the proposed amended schedule. Based on the representations of counsel, the motion for summary judgment presents a purely legal question as to which no additional discovery is necessary, final supplements to written discovery will be served on March 17, 2025, there may be additional discovery disputes depending on what is produced on that date, and witness schedules have not been determined.

I directed the parties to file a joint status report by **March 18, 2025** confirming that counsel and witnesses are available such that depositions will be completed in the proposed timeframe and confirming that all written discovery has been produced. I also reminded counsel that, in the event there is an unresolved discovery dispute, they must email me a brief summary at judges@fmc.gov so that I can schedule a conference to resolve the dispute promptly.

I will rule on the joint motion after receiving the joint status report.

SO ORDERED.

ALEX
CHINTELLA



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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge